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Could Skittles, Pez and Sour Patch Kids be pulled from shelves? 'Toxic' additive found in popular candies may be BANNED in California in WEEKS as bill lands on Gavin Newsom's desk

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State legislature has voted in favor of a ban on four toxic chemicals in foods Governor Gavin Newsom has four weeks to either sign or veto the bill READ MORE: Food manufacturers hit back at Californian ban on toxic chemicals

A Californian bill that could ban or force the makers of Skittles and Pez to change their recipes has headed to the Governor's desk for signature.

The state legislature voted Tuesday in favor of banning the manufacture, sale and distribution of four chemicals in foods linked to cancer, disease and mood problems.

The Californian bill — named A.B.418 — would end the use of brominated vegetable oil, potassium bromate, propylparaben and Red Dye No.3 in California's food supply.

An earlier version of the bill also included another chemical — titanium dioxide — although this was removed.

Introduced by Assemblymember Jesse Gabriel, it passed a senate vote 33-3 on Monday and a final procedural vote in the Assembly on Tuesday.

It is now on Governor Gavin Newsom's desk, who will have until October 14 to sign or veto the bill.

If signed, it will come into force on January 1, 2027, and impose fines of up to $10,000 for the sale, manufacture or distribution of these chemicals in America's most populous state.

Rep. Gabriel said: 'Today's bipartisan vote marks a huge step forward in our effort to protect children and families in California from dangerous and toxic chemicals in our food supply.

'It's unacceptable that the US is so far behind the rest of the world when it comes to food safety.'

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Industry stakeholders are biting back saying the bill jumps the gun because these substances are already under review.

Gabriel, who is a father of three children, told the Assembly Tuesday the bill was aiming to get 'minor modifications' to the recipes of sweets like Skittles — rather than ban them outright.

'I just assumed that there was somebody in DC watching my back,' he said.

'As soon as I became aware that that was in fact not the case — and that we were in a much different position than the rest of the world — it became clear to me that we needed to do something about it.'

Speaking to the Los Angeles Times in March, Gabriel added: 'I love Skittles. I love Wild Berry Skittles. I eat them all the time. I would vote against a bill to ban Skittles.

'What we're really trying to do is to change their recipes.'

Studies show that Red No.3 — a food dye in many candies — can cause cancer in laboratory animals in very high doses and has been linked to behavioral issues in children.

The US banned it from cosmetic products in the 1990s, but it remains in many food products still sold in the US.

A pair of studies in 2016 found it was in more than one in 10 candies in the US and more than 80 percent of children under two had consumed it in the past two weeks.

Another of the substances set to be banned — brominated vegetable oil, which is made from plants and used for citrus flavoring — is suggested to harm the body's nervous system following long-term exposure.

It has also been linked to the development of chronic headaches, memory loss and impaired balance. It was previously in the soda Mountain Dew until parent company Pepsi removed the ingredient in 2020.

Propylparaben, often used as a preservative in baking goods, has been linked to fertility issues in mice via disrupting estrogen in females and reducing sperm counts in males.

Potassium bromate is found in many baked goods too, but has been linked to the development of thyroid and kidney cancers. It is often used in processed foods to make the dough rise.

Industry stakeholders hit back at the Californian ban in March, saying the bill jumped the gun because the additives' safety was already being reviewed through a number of existing measures.

They included directors from the National Confectioners Association, California Grocers Association and the American Chemistry Council.

Brian Ronholm, the director of food policy at Consumer Reports, said: 'Toxic chemicals that have been shown to cause cancer and other chronic health problems should not be allowed in our food.

'Unfortunately, the Food and Drug Administration hasn't taken action to protect the public, despite the well-documented risks these harmful chemicals pose to our health.

'We applaud state lawmakers for voting to ban these hazardous chemicals from food and urge Governor Newsom to sign this landmark legislation into law.'

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